

19STCV21218 19STCV21218

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-20

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Case Number: 19STCV21218 Hearing Date: August 20, 2026 Dept: 507

TENTATIVE RULING:

Plaintiff Andrew Kern's motion for entry of judgment pursuant to Code of Civil Procedure section 664.6 is GRANTED.

DISCUSSION:

Motion for Entry of Judgment Pursuant to CCP § 664.6

Plaintiff moves the Court for an order, pursuant to Code of Civil Procedure section 664.6, entering judgment against Defendants, jointly and severally, in the amount of \$7,500.00.

On October 27, 2023, Plaintiff and Defendants John Gold and Diesel One (collectively, "Defendants") executed a Settlement and Release Agreement, in which Robert Kern agreed to release his claims against Defendants in exchange for a total payment of \$10,000.00. (Mot., p. 3.) Plaintiff later moved to enforce the settlement under Code of Civil Procedure section 664.6. (Mot., p. 3.) The Court granted Plaintiff's motion and ordered Defendants to pay Plaintiff the remaining settlement balance of \$7,500.00 within 10 calendar days of service of the order on August 27, 2025. (Mot., p. 3; see also 8/27/25 Minute Order.) Defendants have failed to pay. (Mot., p. 3.) Plaintiff now seeks judgment entered against Defendants.

Code of Civil Procedure section 664.6, subdivision (a), gives a court the authority upon motion of a party to enter judgment pursuant to the terms of the written, signed settlement. "If the parties agree, the court may dismiss the case without prejudice and retain jurisdiction to enforce the settlement until full performance is made. (Ibid.) The court need not vacate the dismissal if the parties requested retention of jurisdiction before the dismissal. (Madrigal v. Hyundai Motor America (2025) 17 Cal.5th 592, 719, fn. 3; Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.)

The Court retained jurisdiction following dismissal to enforce the Settlement Agreement in its entirety. (See Joint Stipulation and Order for the Court to Dismiss Case and Retain Jurisdiction, 7/30/24.) The Court further finds the \$7,500.00 requested proper and justified.

Accordingly, Plaintiff Andrew Kern's motion for entry of judgment pursuant to Code of Civil Procedure section 664.6 is GRANTED. Judgment is entered pursuant to Code of Civil Procedure section 664.6 against Defendants, jointly and severally, in the principal amount of \$7,500.00, plus post-judgment interest.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.